JURD7150 | LAWS1150 Term 3, 2026

Principles of Private Law

Course Schedule / Reading Guide

Week + Class	Topic	Sub-Topics	Required Readings	Extracted Cases	Optional Further Readings
Week 1, Online Activity	Overview	The concept of private law and the place of contract law within it Classical contract theory	*Contracts Textbook* Read [2.10]–[2.140] (pp41-50) Skim [2.150]-[2.220] (pp50-54) Then read [1.10] – [1.30] (pp3-10)	-	-
Week 1, Class 1A	Contracts	Agreement - offer	*Contracts Casebook* Read [3.10] – [3.120] (pp39-53) Skip [3.130]-[3.150] (pp53-56) Then read [3.160] (pp56-63) but stop reading at the heading '3. Promissory estoppel issues' [3.170] on page 63.	[3.30] *Gibson v Manchester City Council* [3.50] *Carlill v Carbolic Smoke Ball Company* [3.70] *MacRobertson Miller Airline Services v Commissioner of State Taxation (WA)* [3.100] *Pharmaceutical Society of Great Britain v Boots Cash Chemists (Southern)* [3.160] *Mobil Oil Australia v Wellcome International*	*Contracts Textbook,* [3.10] – [3.160]
Week 1, Class 1B	Contracts	Agreement - acceptance	*Contracts Casebook* Read [3.210] – [3.270] (pp66-73) Skip [3.290] – [3.300] (pp73-76) Then read [3.310] – [3.320] (pp76-82) Skip [3.330]-[3.360] (the first part of Ipp JA's judgment; pp82-84) Then read [3.370] – [3.470] (pp84-92) Skim [3.480] – [3.940] (p92) Then read [3.500] – [3.510] (pp93-97)	[3.220] *The Crown v Clarke* [3.250] *Felthouse v Bindley* [3.260] *Empirnall Holdings v Machon Paull Partners* [3.270] *Brambles Holdings v Bathurst City Council* [3.440] *Brinkibon v Stahag Stahl und Stahlwarenhandelgesellschaft* [3.500] *Butler Machine Tool Co v Ex-Cell-O Corp* + [3.470] *Electronic Transactions Act 2000* (NSW)	*Contracts Textbook,* [3.170] – [3.330]
Week 2, Class 2A	Contracts	Consideration - Part 1	*Contracts Casebook* Read [4.10] – [4.180] (pp99-113) Then read the short extract from *Pao On v Lau Yiu Long* (on Moodle)	[4.40] *Australian Woollen Mills v Commonwealth* [4.60] *Beaton v McDivitt* [4.160] *Woolworths v Kelly* [4.180] *Roscorla v Thomas* + *Pao On v Lau Yiu Long* (extract only)	*Contracts Textbook,* [4.10] – [4.140]
Week 2, Class 2B	Contracts	Consideration - Part 2	*Contracts Casebook* Read [4.190] – [4.290] (pp113-125)	[4.210] *Foakes v Beer*	*Contracts Textbook,* [4.150] – [4.250]

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			Skip [4.300] - [4.340] (pp125-131) Then read [4.350] - [4.360] (pp131-133)	[4.230] *Williams v Roffey Bros & Nicholls (Contractors)* [4.250] *Musumeci v Winadell* [4.280] *Re Selectmove* [4.350] *Wigan v Edwards*	
Week 2, Online Activity	Contracts	Revision/overview of offer, acceptance and consideration	-	-	-
Week 3, Class 3A	Contracts	Intention to create legal relations	*Contracts Casebook* Read [5.10]-[5.190] (pp133-157)	[5.20] *Ermogenous v Greek Orthodox Community of SA* [5.60] *Banque Brussels Lambert v Australian National Industries* [5.100] *Todd v Nicol* [5.120] *Administration of Papua and New Guinea v Leahy* [5.140] *Masters v Cameron*	*Contracts Textbook*, [5.10]-[5.170]
Week 3, Class 3B	Contracts	Certainty	*Contracts Casebook* Read [6.10] – [6.150] (pp159-174) Skip [6.160]-[6.240] (pp174-181) Then read [6.250]-[6.310] (pp181-190)	[6.40] *Council of the Upper Hunter County District v Australian Chilling and Freezing* [6.50] *Biotechnology v Pace* [6.110] *Whitlock v Brew* [6.130] *Hall v Busst* [6.250] *Meehan v Jones* [6.300] *Godecke v Kirwan*	*Contracts Textbook*, [6.10] – [6.100] and [6.130] – [6.140]
Week 3, Online Activity	Contracts	Revision	*Contracts Casebook* Read [6.320]-[6.350] (pp191-196)	[6.320] *Placer Development v Commonwealth*	*Contracts Textbook*, [6.110] – [6.120]
Week 4, Class 4A ***see note below on public holiday arrangements***	Contracts	Privity - Part 1	*Contracts Casebook* Read [11.10] – [11.40] (pp327-331) Skip [11.50] (pp331-336) *Contracts Textbook* [11.10] - [11.190] (pp283-300) (you may omit paras [11.30] and [11.60])	[11.20] *Coulls v Bagot's Executor & Trustee* (up to and including [11.40] only) [You may wish to read Windeyer J's dissenting judgment at [11.50], which is a very good judgment but it is not part of the set readings.]	-
Week 4, Online Activity	Contracts	Privity – Part 2 How to answer a problem question	*Contracts Casebook* Read [11.130] (pp346-352) *Contracts Textbook* Read [11.200] - [11.230] (pp300-303)	[11.130] *Trident General Insurance v McNiece Bros Ltd* (Mason CJ and Wilson J only)	-
Week 4, Class 4B	Contracts	Revision	-	-	-
Week 5, Online Activity	Property	Overview	*Custom Publication* Read Reading 1 [1.1] – [1.16] (pp1-10)	[1.12C] *Stow v Mineral Holdings (Australia) Pty Ltd* + [1.7E] 'The Idea of Property Law', by K Gray and SF Gray + [1.15C] 'Public Property', by J Page	-
Week 5, Class 5A	Property	Licences, third parties, numerus clausus	*Custom Publication* Read Reading 1 [1.17] – [1.33] (pp10-26)	[1.20C] *Cowell v Rosehill Racecourse Co Ltd* [1.26C] *King v David Allen & Sons, Billposting Ltd* [1.30C] *Georgeski v Owners Corporation Strata Plan 49833*	-

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				+ [1.32E] 'The Numerus Clausus Principle in Australian Property Law', by Brendan Edgeworth	
Week 5, Class 5B	Property	New property and the extent of property rights, property rights and privacy	*Custom Publication* Read Readings 2 and 3 (pp27-28, 29-44) *And see Moodle for further readings*	[1.46C] *Victoria Park Racing and Recreation Grounds Co Ltd v Taylor* (Latham CJ, Dixon J, Evatt J (dissenting)) + [1.43E] 'Proprietary Rights in Human Tissue', R Magnusson	
Week 6 – Flexibility Week	-	-	-	-	-
Week 7, Class 7A	Property	The doctrine of fixtures	*Custom Publication* Read Readings 4 and 5 (pp45-65)	[1.88C] *Agripower Barraba Pty Ltd v Blomfield* [1.93C] *May v Ceedive Pty Ltd*	-
Week 7, Online Activity	Property	Revision Torts for the protection of goods – Part 1	First read the document called 'Online Activity 7 Introductory Readings' on Moodle ('Nemo Dat', 5 pages) Then read *Custom Publication* Reading 6 (pp67-79)	-	-
Week 7, Class 7B	Property	Torts for the protection of goods – Part 2	*Custom Publication* Read Readings 7, 8 and 9 (pp81-102)	[Reading 8] *Penfolds Wines Pty Ltd v Elliott* [2.12C] *Jeffries v The Great Western Railway Co* [2.20C] *The Winkfield* [2.24C] *Armory v Delamirie*	
Week 8, Online Activity – Part 1	Property	Formal requirements for the transfer of land – Part 1	*Custom Publication* Read Reading 11 (pp133-144)	-	Document called 'Online Activity 8 Introductory Readings' on Moodle (*'Becoming a Property Owner'*, 2 pages).
Week 8, Class 8A	Property	Possession of land and adverse possession	*Custom Publication* Read Reading 10 (pp103-132)	[2.40C] *Perry v Clissold* [2.51C] *McPhail v Persons Unknown* [2.64C] *Price v Spoor* [2.84C] *Whittlesea City Council v Abbatangelo*	
Week 8, Class 8B	Property	Formal requirements for the transfer of land – Part 2 The interest of a purchaser under a binding sale agreement Part performance	Read the document called 'Online Activity 8B Introductory Readings' on Moodle ('Legal and Equitable Property', 3 pages) *Custom Publication* Read Reading 12, [4.50]-[4.63C] (pp145-154) Skip [4.64]-[4.69] (pp154-157) Then read [4.70]-[4.75] (pp 157-161) Then read Reading 13 from the *Custom Publication*) (pp163-172).	[4.51C] *Bunny Industries Ltd v FSW Enterprises Pty Ltd* [4.63C] *Queensland v Morecroft* [4.71C] *Walsh v Lonsdale* [4.44C] *Pipikos v Trayans*	
Week 8, Online Activity – Part 2	Property	Revision	*Adverse possession*	-	
Week 9, Online Activity	Property	Revision	*Formal requirements for the transfer of land* *Part performance*	-	-
Week 9, Class 9A	Estoppel	Equitable estoppel – Part 1	*Contracts Textbook* Read [9.10] – [9.70] (pp185-192)	[4.151C] *Inwards v Baker* [9.20] *Je Maintiendrai v Quaglia*	*Contracts Textbook* [9.10]-[9.210]

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			Custom Publication Read Reading 14 [4.151C]–[4.153] (pp173-175) *Contracts Casebook* Read [9.20]–[9.50] (pp222-228) *Custom Publication* Read Reading 14 [4.158]–[4.160] (pp176-182)	[4.151C] *Waltons Stores v Maher*	
Week 9 Class 9B	Estoppel	Equitable estoppel – Part 2	*Custom Publication* Read Reading 14 [4.161C]–[4.178] (pp183-193) *Contracts Casebook* Read [9.260]–[9.300] (pp254-256) Then read the two 'Further Materials…' documents in the Class 9B Readings folder.	[4.161C] *Austotel v Franklins Self-Serve* (Kirby P) [4.173C] *Delaforce v Simpson-Cook* (Handley AJA, Allsop P) [4.177C] *Sidhu v Van Dyke* [9.260] *W v G*	*Contracts Textbook* [9.220] – [9.360] *Ashton v Pratt* (Bathurst CJ) [via Moodle]
Week 10, Online Activity	Estoppel Agency	Revision Introduction	-	-	-
Week 10, Class 10A	Agency	-	*Custom Publication* Read Readings 15 & 16 (pp195-221)	[Reading 16] *Crabtree-Vickers Pty Ltd v Australian Direct Mail Advertising & Addressing Co Pty Ltd*	
Week 10, Class 10B	Revision		-	-	-

*Note: Arrangements for classes scheduled for the Labour Day public holiday on 5 October 2026:

- There will be no class held on the Monday public holiday nor on Tuesday of Week 4 (5 October 2026). In lieu of that class, please review the online materials for the topic 'Privity – Part 1' from Week 4 Class 4A.

These arrangements are necessary to ensure that all classes remain in sync whilst minimising interruption to face-to-face teaching. Online materials will be provided in lieu of the classes and you may also be expected to post responses as directed by your teacher into a Q&A forum for your class or teacher.